

\$65,000 payment and his labor, based on their knowledge of the intention of one or more of the defendants to make a false promise or misrepresentation that there would be a transfer of Akbar's shares and part ownership of the business assets. Plaintiff makes a general allegation that the defendants "were acting in concert with each other," but he does not allege that these defendants knew of the scheme to defraud and intended to aid in its commission.

The general demurrer to the fifth cause of action is **sustained, with leave to amend**.

8. 9:00 AM CASE NUMBER: C24-03076
CASE NAME: DEJA JONES VS. JOHN MUIR HEALTH
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: JOHN MUIR HEALTH

TENTATIVE RULING:

Continued by stipulation of the parties to December 11, 2025, 9:00 a.m.

9. 9:00 AM CASE NUMBER: C24-03076
CASE NAME: DEJA JONES VS. JOHN MUIR HEALTH
***HEARING ON MOTION IN RE: STRIKE FIRST AMENDED COMPLAINT**
FILED BY: JOHN MUIR HEALTH

TENTATIVE RULING:

Continued by stipulation of the parties to December 11, 2025, 9:00 a.m.

10. 9:00 AM CASE NUMBER: C25-01466
CASE NAME: SANTO SANTOMAURO VS. LONE TREE ESTATES OWNERS' ASSOCIATION
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: NEUMILLER & BEARDSLEE

TENTATIVE RULING:

Defendants Neumiller & Beardslee and NB Association Services demur to plaintiff Santo Santomauro's complaint for wrongful foreclosure and other causes of action. They argue that complaint fails as to Neumiller & Beardslee because it does not assert any cause of action against them, and fails as to NB Association Services because it alleges no actionable conduct by it.

Plaintiff has filed no opposition. Proof of service is in the file, including a notice of demurrer that sets forth the hearing date and time.

The demurrer is sustained, with leave to amend.

11. 9:00 AM CASE NUMBER: C25-01466
CASE NAME: SANTO SANTOMAURO VS. LONE TREE ESTATES OWNERS' ASSOCIATION
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: LONE TREE ESTATES OWNERS' ASSOCIATION

TENTATIVE RULING:

Defendant Lone Tree Estates demurs to plaintiff Santo Santomauro's complaint for wrongful foreclosure and other causes of action. Lone Tree argues that the complaint fails because the foreclosure here was a judicial foreclosure, in which his arguments were considered and rejected.